REPORTABLE (61)

ASTON ALOIS MUSUNGA
v
LAW SOCIETY OF ZIMBABWE

SUPREME COURT OF ZIMBABWE
MAKONI JA, MATHONSI JA & MWAYERA JA
HARARE: 23 MAY 2025 & 17 JULY 2025

T. Mpofu, for the appellant

G. Madzoka, for the respondent

MATHONSI JA: On 31 October 2024, the High Court (the court *a quo*) struck off the roll with costs an application for review made by the appellant on the basis that it was brought before it prematurely in the middle of proceedings.

THE FACTS

The appellant is a senior legal practitioner practicing law under the style of Musunga & Associates, a law firm based in Harare. The respondent is a statutory body established in terms of the Legal Practitioners Act [*Chapter 27:07*] to regulate the legal profession and in particular the conduct of legal practitioners in this country. In the process of practicing law, the appellant was in 2020 engaged by one Plaxedes Ngwenya (the complainant) through his law firm, to represent her in a labour dispute with her employer, Lusitania Primary School.

At Musunga & Associates, the complainant's case was, in quick succession, handled by three different legal practitioners, Dhlakama, then Mujawo and finally Vudzijena, before each left the law firm. The three were the professional assistants employed by the

appellant and therefore his subordinates under his direct supervision. The complainant was unhappy with the manner in which her case was handled especially as each of the appellant's professional assistants did not fare well at the Labour Court where the dispute was playing out.

Disgruntled, the complainant penned a letter of complaint to the respondent on 16 September 2022, bitterly complaining about the appellant's failure to supervise his associates. The letter reads in relevant part thus:

> "**REF: COMPLAINT AGAINST A. MUSUNGA OF MUSUNGA & ASSOCIATES.**
>
> In 2020, I Plaxedes Ngwena engaged Musunga & Associates seeking legal representation on a matter involving myself and Lustania Primary School. …
> However, there were many instances that resulted to failure (*sic*) in following procedure. These include the complainant having to correct cover pages of the papers presented at the Labour Court, the judges' clerk, the late Mr Gary under Hon. Judge Musariri having to time and again assist the lawyers as they seriously lacked supervision from the principal. The law firm had never done any labour case as evidenced by the absence of the law firm's pigeon hall (*sic*). Hence there was serious need to be supervised. Attached are also daily corrections that were done on the consolidated index with case number LC/H/407/21 from 1 February to 4 February 2022. On 23 March, again another scenario on incompetency was raised and letter was written dated 23 March 2022 with LC/H/111/22 and XREF LC/H/407/21 advising the consent paper to be signed by both parties. In 2021, attached is a letter dated 9 April 2021, indicating that the matter could not be set down as a result of failure to attend to pagination.
>
> From 2020 to 2021, I understand that court proceedings were affected by lockdowns, reduced numbers of employees with the Labour Court and this somehow caused some delays but, in my case, incompetency from the law firm, lawyers and their principal failing to monitor the entire matter, resulted in taking more time to seek justice and be properly heard before the courts. I feel as a complainant that I was let down by the law firm for almost two years and the law firm including the lawyers mentioned, must face the wrath of law so that I continue with the matter even if time has lapsed."

This letter of complaint triggered the action taken by the respondent which has escalated to the present appeal. On 12 October 2022, the Executive Secretary of the respondent, E. Mapara, addressed the following letter to the appellant:

> "**RE: COMPLAINT – MS PLAXEDES NGWENA**

I enclose herewith a letter of complaint received from the above named.

In the attached complaint, it is alleged that the complainant engaged your law firm to attend to her labour matter wherein she was challenging her unlawfully dismissal from employment. It is alleged that you failed to adequately supervise your subordinates as they had filed defective court process. It is further alleged that your subordinates had failed to timeously file court process seeking the reinstatement of the matter subsequent to it being struck off the roll.

From the attached documents, your professional conduct seems to point to possible contravention of s 23 (2) (a) of the Legal Practitioners Act [*Chapter 27:07*] as read with By-Law 3 (20) and (35) of the Legal Practitioners (Code of Conduct) By-Laws SI 37 of 2018.

In terms of the Law Society By-Laws, you are required to reply to the substance of the complaint in writing within fourteen (14) days. Kindly note that your failure to respond within the stipulated time frame will result in negative inferences being drawn from your failure to respond and the matter will be forwarded to the Disciplinary and Ethics Committee without further reference to you.

We further bring your attention to the fact that in terms of Part VIII of the Law Society By-laws, SI 314 of 1982, the determination of the professional and ethical conduct alleged herein will be on the basis of documentary evidence received from the parties involved. You are therefore to furnish as much evidence as possible in substantiating any averments you may make in relation to this complaint investigation.

May I have your comments." (The underlining is mine)

The originating letter from the respondent made it clear, firstly, that if the appellant did not respond to the complaint within the prescribed time frames, adverse inferences would be drawn and secondly that the matter would be referred to the relevant committee of the respondent for consideration. Although the appellant responded, he drew the respondent's attention to the fact that the complainant collected from his firm all the files they were handling which contained information he required to respond to the complaint.

While the appellant initially withheld his response insisting on the information he requested being availed to him, after which the parties haggled about the existence or otherwise of the file notes he wanted for some time, by letter dated 10 March 2023 the appellant eventually responded in a substantive manner. The pertinent part of the appellant's response reads:

"**Failure by complainant to return the files.**

Complainant has the files which contain the notes, attendances by myself and the various lawyers who attended to complainant. In her initial complainant (*sic*) she even attached copies of the notes [Annexure1 dated 31 January 2022 and Annexure 2 dated 3 May 2022]. This clearly shows that all notes are in the files she collected from our offices. The fact that she has refused to return the files clearly shows that she has an ulterior motive to hide the truth from the Law Society. I still insist that complainant has the files which contain the notes, which notes would have exonerated me. Complainant must return the files.

These notes will indicate the attendances I had with complainant and attendances by the various lawyers who assisted complainant. The notes are the *sine qua non* in my responses as the notes will clearly show how much work was put into complainant's case by myself and the other lawyers who handled the complainant's case.

***Modus operandi* adopted in complainant's case**

I must state that I discussed at length with the various lawyers who handled the complainant's case and gave them advice. I always do the same with all cases where the lawyers take some time and sit in the Board Room to discuss the client's cases and share ideas and such meetings are chaired by myself as the senior legal practitioner.

I cannot comment on what went on in the Courts at the hearing as I would not be present. Suffice to say each Judge or Magistrate may have a different view and that is the reason why the judiciary system allows for the aggrieved party to appeal and we have seen superior courts passing a different judgment from that granted by the court *a quo*. That cannot be taken against the particular lawyer who appeared in the lower court as it may have been an error or misdirection by the Judge.

In conclusion, I herein unreservedly state that complainant's case was handled with maximum professionalism.

In our profession you meet good clients who appreciate your work and advice and others who do not. Complainant is one such client who clearly does not appreciate the assistance we rendered to her.

I attach hereto affidavit by Tawanda Vudzijena one of the lawyers who handled complainant's case. I urge the Law Society to dismiss the complainant (*sic*) and in future I propose that the Law Society be allowed to levy costs on complainants who bring frivolous complaints against our esteemed lawyers." (The underlining is mine)

The respondent did not see it that way. It certainly did not dismiss the complaint as urged of it by the appellant. The minutes of its Council meeting held on 4 April 2024 show that

the Council fully deliberated the case and adopted the recommendations made to it by its Disciplinary and Ethics Committee. It therefore concluded that the appellant failed to adequately supervise his professional assistants resulting in prejudice to the complainant.

By letter dated 30 April 2024, the respondent notified the appellant that he was found guilty of unprofessional conduct, that is to say, neglecting to treat a client fairly or taking reasonable steps to protect and pursue a client's best interests in contravention of By-Law 3 (35) of Legal Practitioners (Code of Conduct), 2018. He was called upon to submit his mitigation of sentence, if any, within fourteen days of the date of that letter. The appellant would have none of it.

THE APPLICATION FOR REVIEW

The appellant was aggrieved by the conviction and did not wait for the proceedings before the respondent to be terminated. On 23 May 2024 he filed an application for the review of the decision of the respondent to find him guilty. The two grounds for review were set out as:

> "1. The decision sought to be reviewed is grossly irregular in that it is not supported by reasons bearing on the basis for the conclusion arrived at by respondent and was also arrived at in breach of the *audi alteram partem* rule.
>
> 2. The decision sought to be reviewed is at any rate grossly unreasonable in its substance in that it is at variance with the evidence reviewed as well as the charge preferred."

The application was strongly opposed by the respondent. In the opposing affidavit deposed to by Edward Mapara, the Executive Secretary of the respondent, a preliminary objection was raised at paras 4 to 9 as follows:

> "**IN LIMINE**
>
> 4. The respondent takes the preliminary point that the proceedings sought to be reviewed are unterminated legal proceedings. It is prayed that the application be dismissed.

5. The review that is sought is with respect to ongoing disciplinary proceedings by the Council of the respondent. On 4 April 2024, the respondent found the applicant guilty of neglecting to treat a client fairly, or taking reasonable steps to protect and pursue a client`s best interests, in contravention of the Legal Practitioners Code of Conduct. Applicant was notified of the decision by letter on 30 April 2024. The letter further notified the applicant that he was required to file his submissions in mitigation, pending sentence, within 14 days.

6. Council of the respondent remains seized with the disciplinary matter, and it is yet to consider the appropriate penalty.

7. There is no special circumstance relied upon by the applicant for him to review unterminated proceedings. He could still have instituted proceedings for review of all the proceedings after he had submitted in mitigation to the respondent. Instead, he in a precipitate manner decided not to take the proceedings to their logical conclusion, and if aggrieved take a single step to remedy whatever disgruntlement he has with the proceedings (*sic*).

8. Even assuming that the respondent committed any error, it goes beyond the establishment of an error if the applicant is to be entitled to review unterminated legal proceedings. In is entire application, he does not establish that the alleged error made by the respondent is so gross as to amount to a travesty of justice, a total miscarriage of justice which cannot be remedied in any other way.

9. This is not such a rare case as to meet the required threshold. The applicant had made the application for review as a matter of routine. He appears simply to want to avoid

submitting to a penalty of the respondent. It is an application for review which is not sustained by any apparent ground. There is no *bona fides* to the application."

In his heads of argument before the court *a quo*, counsel for the respondent persisted with the preliminary objection placing it as an issue for the court *a quo`s* determination whether it was a proper case for the court to interfere with unterminated proceedings of the respondent`s Council. The court *a quo* heard the parties on the preliminary point taken by the respondent as well as the merits of the matter. It stated at para 7 of its judgment that, in addition, it also directed counsel to address it on whether the proceedings before the respondent`s Council were ripe for review.

In resolving the preliminary point taken by the respondent on interference with unterminated proceedings as well as the question of ripeness which it raised *mero motu*, the court *a quo* stated at paras 12 to 14 of its judgment:

"[12] It is trite that for the applicant to engage the review jurisdiction of this court at this stage, he must demonstrate serious prejudice. My reading of author Louis Jaffe`s article (*supra*) is that what is described as 'Substantial sacrifice on the litigant`s interests,' connotes serious prejudice. It is so because challenging proceedings of an administrative tribunal midstream is an exception, rather than the norm. It is not for the mere asking. The judicial policy underpinning the doctrine of ripeness serves a useful purpose in administrative justice. It curtails continuous disruptions in proceedings before administrative tribunals, and ensures that the hearing of reviews is not piecemeal. This limitation is justifiable because redress will ordinarily be available after the completion of the matter. Therefore, it is imperative for a litigant to show serious prejudice as a gateway to engage the review jurisdiction of this court midstream.

[13] It seems to me that the reasons advanced (for) seeking to engage the review jurisdiction of this court do not amount to the kind of prejudice that must be demonstrated at this stage. Mr *Mpofu* submitted that the applicant has chosen that he will not continue with the disciplinary process, and he can challenge it up to the point of his last participation. It was submitted that the choice is his. My opinion is that the choice might well be his, but is subject to the requirements of the law. No system of justice can permit a litigant to stop midstream participating in administrative proceedings, and seek to challenge such proceedings on review

without showing the requisite prejudice. The view I take is that whatever applicant is complaining about, that the decision of Council is grossly irregular, is in breach of the *audi alteram partem* rule; and that it is grossly unreasonable, if found proved may well be corrected after the finalization of the case by Council. All these issues concerning the requested documents, the alleged failure to give reasons for the decision etc, if established may well be corrected after the Council has completed its statutory duty. In addition, the contention that the applicant is challenging his conviction, and such challenge must be brought within the time-line set out in the rules, without more does not seem to be cogent in my view. I say so because it is trite that the time-frame for seeking a review is calculated from the date the matter is finalized. In this case, proceedings pending before Council shall be finalized upon the imposition of the penalty.

[14] In conclusion, I reiterate the point that in administrative law a conviction before penalty is generally not reviewable, unless serious prejudice has already resulted or is inevitable, irrespective of whether this action is complete or not. The requisite prejudice, to defeat objection of ripeness has not been shown in this matter. This matter has been brought on review prematurely… A case has not been made to engage the review jurisdiction of this court at this stage of the proceedings. Council of the Law Society of Zimbabwe must be allowed to finalise the proceedings before it without interference by this court."

Having said that, the court *a quo* refused to exercise its review jurisdiction and proceeded to strike the matter off the roll with costs.

THE APPEAL

The appellant was still disgruntled by that outcome and filed the present appeal on the following grounds of appeal:

"1. Having found that exceptional circumstances bearing on why the court had been approached in *medis rebus* had been pleaded, the court *a quo* contradicted itself and erred in law in finding that the matter before it was not ripe for adjudication.

2. Appellant having been convicted in proceedings he asserted to have been irregular, such conviction having been final and appellant`s interest having been limited to the

validity of the proceedings and the concomitant conviction, the court *a quo* erred in finding that the dispute before it was not ripe for adjudication.

3. The court *a quo* erred at any rate in not finding that the sentencing of the appellant could not affect his grounds or challenging respondent`s exercise of function and that such challenge did not accordingly have to await the sentencing process.

4. The court *a quo* erred at any rate in not finding that the irregularity of the proceedings arising out of breach of the right to be heard as well as the failure to furnish appellant with reasons was such as yielded serious prejudice, the kind of which was sufficient to defeat the court raised point of ripeness.

RELIEF SOUGHT

1. That the appeal is allowed with costs.
2. That the judgment of the court *a quo* is set aside and in its place is substituted the following:

   "The point *in limine* is dismissed."

Two issues commend themselves for resolution in this appeal. They are:

1. Whether or not the court *a quo* erred in refusing to exercise its review jurisdiction in the matter; and
2. Whether or not the court *a quo`s* advertence to the issue of ripeness vitiated the fact that these were unterminated proceedings.

Mr *Mpofu*, who appeared for the appellant, motivated the appeal from the premise that, while it is true that the respondent took the preliminary point to the effect that the court could

not intervene in unterminated proceedings unless it is shown that there are exceptional circumstances calling for such intervention, the court *a quo* found that there were exceptional circumstances in this matter. In his view, the court *a quo* dismissed the respondent's objection but went on to raise its own preliminary point on ripeness and determined the matter on that basis alone.

According to counsel, the rejection by the court *a quo* of the respondent`s claim that there were no exceptional circumstances as would inform an interference in unterminated proceedings is located at para 6 of the judgment. After making reference in para 5 to the respondent`s contention that the founding affidavit did not plead any special circumstances justifying interference, the court *a quo* proceeded at para 6 to make the following remarks:

> "It was submitted further that at any rate and should it be required that there be in existence exceptional circumstances, those are set out in the founding affidavit, and summarized in the answering affidavit. Indeed, a closer scrutiny shows that what the applicant refers to as exceptional circumstances are found in the founding affidavit and summarized in the answering affidavit. These contain what according to the applicant amounts to special circumstances. Therefore, the attack on the founding affidavit has no merit and is refused."

Mr *Mpofu* submitted that, having determined that there existed exceptional circumstances requiring the court *a quo* to interfere on review, the court *a quo* misdirected itself by finding that it could not intervene because the matter was not ripe for review. Counsel submitted that the decision to convict the appellant was final and could not be corrected by the respondent because it was already *functus officio* to the extent of the conviction.

Developing that argument further, counsel strongly submitted that the appellant was not interested in the sentence. He was entitled to walk away from the proceedings at that stage and take the case on review. Relying on the authority of *Moyo* v *Rural Electrification Agency*

SC 4/14, it was submitted on behalf of the appellant that a party that decides to walk away from proceedings is allowed to challenge those proceedings up to the stage at which the party decides to walk away.

Mr *Mpofu* argued that the proceedings before the court *a quo* were ripe for adjudication because the conviction was final. He submitted further that the court *a quo* erred in finding that if all the factors complained of by the appellant had substance, they could all be dealt with and rectified after the finalization of the case by the respondent's Council. This was so, argued counsel, because the Council would be *functus officio.*

It was submitted that the appellant could not proceed to mitigate because he was not accorded the reasons for conviction and his right to be heard was infringed upon when the respondent did not provide reasons for the conviction. The success of the appeal and remittal of the matter for its determination by the court *a quo* on the merits was prayed for.

Per contra, Mr *Madzoka,* who appeared for the respondent, submitted that the appellant was aware that he was required to submit his mitigation to enable the respondent's Council to complete the disciplinary proceedings before it but chose not to. Having elected instead to approach the court *a quo* early, so counsel argued, the appellant was required to satisfy the requirements for the court *a quo*'s interference in incomplete proceedings including demonstrating prejudice.

Counsel submitted that the major part of the judgment *a quo* was that the court *a quo* found that the appellant failed to prove prejudice as would inform its early exercise of review jurisdiction. He disputed that the court *a quo* made a finding that exceptional circumstances existed calling for interference. In his view the submissions by counsel for the appellant that such

finding was made is a misreading or misunderstanding of para 6 of the court *a quo*'s judgment. That passage of the judgment, according to Mr *Madzoka,* only recognizes what the appellant submitted as his exceptional circumstances for interference in unterminated proceedings. He submitted that the findings of the court *a quo* are contained in para 13 of its judgment.

Mr *Madzoka* distinguished the case of *Moyo* v *Rural Electrification Agency*, *supra*, on the basis that the circumstances therein were different from those in the present case because the proceedings in that case were finalized before the challenge was launched. Regarding the appellant's argument that he could not mitigate without reasons, counsel submitted that there was nothing stopping the appellant from requesting the reasons and if they were not availed, to proceed in terms of ss 3 and 4 of the Administrative Justice Act [*Chapter 10:28*].

THE LAW

The general position is that the High Court has review jurisdiction over proceedings and decisions of all inferior courts of justice, tribunals and administrative authorities within Zimbabwe in terms of s 26 of the High Court Act [*Chapter 7:06*]. However, the jurisprudence that has evolved is, firstly, that the court is slow to exercise its general review jurisdiction in a situation where a litigant has not exhausted domestic remedies available. A litigant must first exhaust those remedies before approaching the court unless good reasons are shown for making an early approach. See *Moyo* v *Forestry Commission* 1996 (1) ZLR 173 (H); *Moyo* v *Gwindingwi & Anor* HB 168/11 at p.3.

Secondly, the courts will deliberately refrain from interfering in unterminated proceedings of an inferior court or tribunal unless there are exceptional circumstances of proven gross irregularity vitiating the proceedings and giving rise to a miscarriage of justice which cannot

be redressed by any other means or where the interlocutory decision is clearly wrong as to seriously prejudice the rights of the litigant. This position was eloquently stated in *Attorney-General* v *Makamba* 2005 (2) ZLR 54 (S) at 64C.

Over the years the courts have consistently repeated that position of the law. In *Prosecutor General of Zimbabwe* v *Intratek Zimbabwe (Pvt) Ltd & Ors* SC 67/20 MAKARAU JA, as she then was, expressed it thus:

> "Thus, put conversely, the general rule is that Superior Courts must wait for the completion of the proceedings in the lower court before interfering with any interlocutory decision made during the proceedings. The exception to the rule is that only in rare or exceptional circumstances where the gross irregularity complained of goes to the root of the proceedings, vitiating the proceedings irreparable, may Superior Courts interfere with on-going proceedings."

See also, *Machipisa* v *Nduna N.O & Anor* SC 89/23; *FBC Bank Limited* v *Kwangwari & Anor* SC 17/25.

Regarding, the principle of ripeness adverted to by the court *a quo* in its judgment, it is to the effect that a litigant should not approach the court before the action or decision complained of is final or at least is ripe for adjudication. Its proponent's advance the thesis that the court's time should not be wasted on half-formed decisions which may change or where decisions have not been made at all. See *Hoexter, Administrative Law in South Africa,* 2nd ed 2012 at p 585.

Ripeness was clearly explained by GARWE JCC in *Zimbabwe Women Lawyers Association* v *The Minister of Justice, Legal and Parliamentary Affairs & Ors* CCZ 13/21 p 6 as follows:

> "The principle of ripeness is therefore part of the doctrine of avoidance. The basic rationale of the ripeness principle is to prevent the courts, through avoidance of premature adjudication, from entangling themselves in abstract disagreements over administrative

> policies and to protect the agencies from judicial interference until an administrative decision has been formalized and its effect felt in a concrete way by the litigating parties."

ASSESSMENT

The court *a quo* refused to exercise review jurisdiction because it took the view that, as much as the appellant may have complaints against the manner in which the case was handled and the decision to find him guilty, it was improper for him to stop the proceedings midstream and seek to challenge the proceedings before completion. In its view, the appellant should wait until the respondent has completed its statutory duty.

The court *a quo* acknowledged that there are instances where the court may depart from the norm that it will not interfere with proceedings midstream. It however took the view that such early intervention can only be done where the party approaching it demonstrates that "serious prejudice has already resulted or is inevitable." It found that no such prejudice was shown by the appellant.

The court *a quo* may have mixed up the principle of ripeness with non-interference in unterminated proceedings and Mr *Mpofu* may be correct in his criticism in that regard, but the view that I take is that the same result would eventuate because, in both situations, the overriding consideration is whether prejudice would result were the court to refrain for interfering. To that extent therefore the court *a quo's* advertence to the principle of ripeness did not vitiate the glaring fact that these were unterminated proceedings. There was no basis for exercising review jurisdiction over only the guilty verdict when the penalty had not been pronounced.

The court *a quo* found that the appellant failed to show that he would suffer prejudice if the proceedings were allowed to go on to their logical conclusion. The authorities cited above are clear that it is only where there are exceptional circumstances of proven gross

irregularity vitiating the proceedings that there would be cause to interfere in unterminated proceedings.

The appellant seeks to challenge the disciplinary proceedings on the basis that he was not afforded an opportunity to be heard because his file notes taken by the complainant were not availed. He makes that criticism even though his response I cited above makes it clear that he responded substantively and denied the allegations leveled against him. The Council of the respondent was therefore in a position to determine the matter.

The appellant also attacks the proceedings on the ground that he was not afforded the reasons for conviction. When this Court engaged Mr *Mpofu* on why the appellant did not demand the reasons for conviction, his view was that the appellant had an election whether to demand the reasons or take the proceedings on review.

This Court agrees with Mr *Madzoka* for the respondent that the high watermark in the court *a quo's* judgment was the finding that there was no prejudice shown by the appellant as to trigger the early exercise of review jurisdiction. The court *a quo* cannot be faulted for making that finding because clearly the appellant's case was that he was at liberty to approach the court on review anytime he chose to.

The court *a quo* was correct to find that the appellant could not do so because no system of justice can permit such haphazard way of litigating. This is more so in a case such as the present where all that the appellant complains about can be dealt with after the disciplinary proceedings are completed there being no prejudice justifying the appellant's early approach to the court *a quo*.

It occurs to me that there is a pressing need to demystify the notion that the judgment of this Court in *Moyo* v *Rural Electification Authority*, *supra*, is authority for a party under disciplinary proceedings to do as they please. That two-paged judgment does no such thing and certainly does not support Mr *Mpofu's* argument at all. Briefly, the facts were that on 22 May 2009, the appellant, who was an employee of the respondent, was handed a letter of suspension on a charge of habitual and substantial neglect of duties. He was advised to appear in person or with a legal representative for a hearing on 29 May 2009 and that if he did not, the hearing will proceed in his absence.

Notwithstanding notification, he travelled to South Africa on 26 May 2009 without seeking a postponement. The hearing proceeded in his absence resulting in him being found guilty as charged. Upon his return to the country in August 2009 he made himself available for duty and upon being turned down, he unsuccessfully challenged his dismissal before an arbitrator and on appeal to the Labour Court. On appeal to this Court his main argument was that the disciplinary proceedings were irregular and unfair in that he was not heard in person and the matter was not completed within the prescribed period of fourteen day.

The *ratio decidendi* appears in the final two paragraphs of the judgment, to wit:

> "In our view the appellant, by deliberately absenting himself without leave from the hearing, waived his right to challenge the conduct of the disciplinary proceedings. He had the option, which he did not exercise, of seeking a postponement since he knew that he would not be available on the date of the hearing. In these circumstances we do not feel that the failure by the respondent to strictly comply with the Regulations operated to vitiate the disciplinary proceedings.
>
> Accordingly, it is our view that the appeal lacks merit and is hereby dismissed with costs."

That is all that the Court said. Mr *Madzoka* is therefore correct that the proceedings in that case had been completed. More importantly, the judgment does not give the appellant the right to approach the review tribunal anytime he deems fit.

DISPOSITION

Superior Courts will not interfere in unterminated proceedings of a lower court, tribunal or other administrative body but will wait for the completion of those proceedings before interfering with any decision taken in the middle of those proceedings.

A party which requires the court to intervene in the middle of proceedings must show the existence of exceptional circumstances in the form of a gross irregularity which has the effect of vitiating the proceedings and leading to a miscarriage of justice.

Where a party fails to establish the acceptable reasons for interference in an early approach to the court the court will decline to exercise its jurisdiction and direct such a party to go back and see the proceedings through.

The appeal has no merit. It ought to fail and there is no reason why the costs should not follow the result as is the norm.

In the result it be and is hereby ordered that:

"The appeal is dismissed with costs."

MAKONI JA : I agree

MWAYERA JA : I agree

Messrs Makuwaza & Gwamanda Attorneys, appellant's legal practitioners.

Messrs Muvingi & Mugadza, respondent's legal practitioners.